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COPY NO. 7

SWNCC 181/D

29 August 1945

Pages 1 - 3, Incl.

STATE-WAR-NAVY COORDINATING COMMITTEE

DIRECTIVE

CUSTODY OF JAPANESE ARCHIVES AND DIPLOMATIC PROPERTY

Note by the Secretaries

The enclosure, a memorandum by the Assistant Secretary of War, is hereby referred to the State-War-Navy Coordinating Subcommittee for the Far East for a report as a matter of priority.

CHARLES W. McCARTHY
ALVIN F. RICHARDSON
RAYMOND E. COX
Secretariat

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E.O. 11652, Sec 3E and 5(D) or (E)
OSD letter, May 3, 1972
By DJS/SR, NARS Date 4-26-74

ENCLOSURE

MEMORANDUM BY THE ASSISTANT SECRETARY OF WAR

1. The Supreme Commander for the Allied Powers has replied to a directive issued on the request of the State Department, indicating that he questions the soundness of directing action to get custody of archives and diplomatic property belonging to Japan in Japanese consulates throughout the world. He gives as reasons his lack of physical power to enforce the demand and his concern about issuing a directive which would be impossible for him to enforce. His message is attached.

2. Among the probable difficulties connected with this action is the attitude of neutral foreign governments, which might have a reluctance to agreeing to the State Department proposal because of dealings that they have had with the Japanese. A fact which is pertinent to the problem, although not pertinent to the question of the extent of the Supreme Commander's authority, is that all records of any value and codes may by this time, in all probability, have been destroyed by the Japanese.

3. The Supreme Commander's message appears to indicate a need for:

a. Clarification and exposition to him of the authority which the President considers he is to exercise in his position.

b. Specific instructions concerning the matter of Japanese archives and diplomatic property.

4. It is recommended that the SWNCC prepare the messages indicated, by subparagraphs a and b, above, and that these be cleared by the Secretary of State with the President prior to presentation to the Joint Chiefs of Staff for dispatch to General MacArthur.

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By ---------, NARS Date----------

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APPENDIX "A"

From: Commander in Chief, Army Forces Pacific Command, Manila, P.I.

To : War Department

No. C-36364

DECLASSIFIED
E.O. 11652, Sec. 3(E) and 5(D) or (E)
OSD letter, May 3, 1972
By DRF 2, NARS Date 9-26-74

Am entirely in agreement with purpose of your 53582. However, I do not believe matter can be accomplished as you suggest. Since terms of surrender were fixed on governmental level I am sure this change would be regarded by Japanese as beyond scope of my authority. Since the premises involved are not located in Japan but in foreign countries the difficulty arises in the fact that I have no physical power to enforce the demand. Am sure that Japanese will make same reply to me as to State Department, namely that they do not recognize demand as within terms of surrender.

For me to issue a directive which they could defy in this manner and which would be impossible for me to enforce, I believe would be unfortunate. I believe that the only way this can be accomplished would be by pressure on higher governmental level in that terms of surrender include this provision by inference or otherwise.

If you still wish me to make the attempt I will do so shortly when surrender terms have been signed. Further advice requested.

End

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790132
By ---------- NARS Date ----------

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APPENDIX "B"

From: War Department

To : Commander in Chief, Armed Forces Pacific Command, Manila, P.I.

No. WAR 53538

DECLASSIFIED
E.O. 11652, Sec. 3(E) and 5(D) or (E)
OSD letter, May 3, 1972
By DR/ER, NARS Date 4-26-79

A telegram directing action to get custody of archives and property belonging to Japan in Japanese embassies and consulates has been transmitted by State Department to its missions throughout the world. State Department has requested Chinese, British and Russian governments to issue appropriate similar instructions. State Department through Swiss asked Jap government on 14 August to issue instructions to its diplomatic and consular representatives in neutral nations to turn over all property and archives to the custody of Allied representatives and to authorize appropriate protecting Powers in belligerent countries to surrender to the custody of the Allies such property. Through Swiss Japs replied that they regretted they could not comply with US demand to surrender diplomatic property and archives since this did not conform to any terms of Potsdam Declaration which Jap government accepted.

This matter is considered of great importance by State Department who has requested that you as Supreme Commander make provisions for the surrender of Jap consular property and archives to custody of Allies when issuing instructions to Japs.

Foregoing is for your action at time you deem appropriate.

End

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790132
By _____, NARS Date _____

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DRAFT

MEMORANDUM FOR THE PRESIDENT

I am presenting for your approval a report by the State-War-Navy Coordinating Committee recommending proposed messages for transmittal to General MacArthur which contain:

a. Clarification and exposition to him of the authority which you consider he is to exercise in his position as Supreme Commander for the Allied Powers; and

b. Specific instructions concerning the matter of Japanese archives and diplomatic property.

The matter of archives is of little consequence.

Since General MacArthur anticipates that the Japanese would contest their obligation under the Potsdam Declaration to turn over archives and diplomatic property if instructed to do so by him, it is considered important that the whole question of his authority be clarified as well as his being instructed on the question of the diplomatic property and archives.

This report and the recommended messages clarify beyond a doubt that our relations with Japan do not rest on a contractual basis but on an unconditional surrender. Also that though the statement of intentions in the Potsdam Declaration will be given effect this will not be because we consider ourselves bound in a contractual relationship but because the Potsdam Declaration forms part of our policy with relation to Japan and the peace and security of the Far East.

This report has been approved by the Joint Chiefs of Staff and the message in Appendix "B" ("a" above) has been specifically approved by the Secretaries of State and Navy.

I recommend your approval.

Acting Secretary of State